

**LEAD-BASED PAINT, RENOVATION, REPAIR AND PAINTING
PROGRAM DISCLOSURE ADDENDUM**

This Addendum is to be used when the Property at issue was built prior to 1978 and has been renovated, as defined below, since April 22, 2010. The disclosures made herein are separate from and in addition to those disclosures required by the Lead-Based Paint Disclosure Rule (See NMAR Form 5112, Lead-Based Paint Addendum to Purchase Agreement and NMAR Form 5113, Lead-Based Paint Disclosure Before Lease).

The Lead-Based Paint Renovation, Repair and Painting Program ("Program") took effect April 22, 2010 and governs renovation activities in target housing and child-occupied facilities. Target housing is defined as any housing constructed prior to 1978, except zero-bedroom dwellings and housing for the elderly or persons with disabilities (unless any child who is less than six years of age resides or is expected to reside in such housing for the elderly or persons with disabilities). Please refer to NMAR Form 2315, Lead-Based Paint (LBP) Renovation Repair Information Sheet, for the definition of child-occupied facility. Renovation is defined under the Program as the modification of any existing structure, or portion thereof that results in the disturbance of painted surfaces, unless that activity is performed as part of an abatement. The term renovation includes, but is not limited to, the removal, modification or repair of painted surfaces or painted components. Owners who perform their own renovations on their own owner-occupied housing are exempt from the Program. Please refer to NMAR Form 2315 for more information.

PLEASE NOTE: If you have contracted to have renovations performed on your owner-occupied housing since April 22, 2010, the contractor you hired must have completed renovations in compliance with Program requirements. If the contractor did not comply with Program requirements, the contractor may be subject to civil and criminal penalties up to \$37,500 for each violation, imprisonment or both.

IMPORTANT: IF YOU ARE THE OWNER OF RENTAL PROPERTY AND HAVE PERFORMED YOUR OWN RENOVATIONS ON THE RENTAL PROPERTY SINCE APRIL 22, 2010, YOU MUST HAVE COMPLETED RENOVATIONS IN COMPLIANCE WITH THE PROGRAM. IF YOU DID NOT COMPLETE RENOVATIONS IN COMPLIANCE WITH PROGRAM REQUIREMENTS, YOU MAY BE SUBJECT TO CIVIL AND CRIMINAL PENALTIES UP TO \$37,500 FOR EACH VIOLATION, IMPRISONMENT OR BOTH. IF YOU HAVE PERFORMED YOUR OWN RENOVATIONS ON YOUR RENTAL PROPERTY SINCE APRIL 22, 2010, DO NOT COMPLETE THIS FORM BEFORE REVIEWING NMAR FORM 2315, LEAD-BASED PAINT (LBP) RENOVATION REPAIR INFORMATION SHEET AND OBTAINING LEGAL ADVICE FROM AN ATTORNEY.

This Disclosure Addendum is made part of the Commercial Property Lease/Rental Agreement Seller's Property Disclosure Statement ☐ Purchase Agreement ☐ Property Management Agreement ☐ Residential Rental Agreement ☐ Other _____ dated _____ between the following parties: _____ and _____

and relating to the following Property: _____

Address (Street, City, State, Zip Code) _____

Legal Description _____

Describe the nature of the renovations conducted on the Property: _____

1. When were renovations completed? _____
2. If known, name of person(s) and/or contractor(s) who and/or firm(s) that conducted renovations: _____

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NEW MEXICO ASSOCIATION OF REALTORS® — 2025
ADDENDUM NO. _____
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3. Was the contractor(s) certified under the Program? ☐ Yes ☐ No ☐ Don't Know

4. Were the renovations performed in compliance with the Program? ☐ Yes ☐ No ☐ Don't Know

PLEASE NOTE: PER THE LEAD-BASED PAINT DISCLOSURE RULE, THE OWNER MUST PROVIDE ALL AVAILABLE DOCUMENTATION PERTAINING TO LEAD-BASED PAINT AND/OR LEAD-BASED PAINT HAZARDS, INCLUDING, BUT NOT LIMITED TO ALL RECORDS, REPORTS, AND TEST RESULTS. AS APPLICABLE, SEE NMAR FORM 5112, LEAD-BASED PAINT ADDENDUM TO PURCHASE AGREEMENT, AND/OR NMAR FORM 5113, LEAD-BASED PAINT DISCLOSURE BEFORE LEASE.

For more information on the hazards of lead-based paint, lead-based paint regulations and lead-safe work practices, please visit www.epa.gov/lead and www.hud.gov/lead.

BUYER(S)/TENANT(S)

_____ Buyer Signature	_____ Printed Name	_____ Date	_____ Time
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_____ Buyer Signature	_____ Printed Name	_____ Date	_____ Time
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SELLER(S)/OWNER(S)

_____ Seller Signature	_____ Printed Name	_____ Date	_____ Time
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_____ Seller Signature	_____ Printed Name	_____ Date	_____ Time
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If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum